



CHAPTER lxxxi.

An Act to empower the mayor aldermen and burgesses of the borough of Margate to construct street improvements sea walls and promenades and a reservoir and to purchase lands for various purposes to make further provision with regard to the health local government and improvement of the borough and for other purposes.

A.D. 1926.

[4th August 1926.]

WHEREAS the borough of Margate in the county of Kent is a municipal borough under the government of the mayor aldermen and burgesses of the borough of Margate (in this Act called "the Corporation") who acting by the council are also the urban sanitary authority for the district comprising the borough:

And whereas it is expedient to empower the Corporation to construct the street improvements and sea walls and promenades and to purchase the lands referred to in this Act for the several purposes mentioned in this Act:

And whereas the Corporation supply water within the borough and certain neighbouring places and it is expedient to authorise the Corporation to construct and maintain the service reservoir described in this Act:

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the borough and to enlarge the powers of the Corporation with regard thereto as provided in this Act:

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And whereas it is expedient to provide for the formation of a consolidated loans fund by the Corporation and to make further provision with regard to the finances of the Corporation and the application of revenue derived from their water undertaking :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the purchase of lands. - - -	5,984
For and in connection with the construction of the street works authorised by this Act - - -	143,429
For and in connection with the construction of sea walls and promenades authorised by this Act - - -	114,626
For and in connection with the construction of the service reservoir authorised by this Act - - -	27,500

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Kent and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

Spiritual and Temporal and Commons in this present A.D. 1926.
Parliament assembled and by the authority of the same —
as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Margate Corpora- Short title.
tion Act 1926.

2. This Act is divided into Parts as follows (that is Division of
to say) :— Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Street improvements and sea walls
and promenades.

Part IV.—Water supply.

Part V.—Streets buildings sewers and drains.

Part VI.—Infectious disease and sanitary pro-
visions.

Part VII.—Police and hackney carriages.

Part VIII.—Rating provisions.

Part IX.—Financial provisions.

Part X.—Miscellaneous.

3. The following Acts and parts of Acts (so far as Incorpora-
the same are applicable for the purposes and are not tion of Acts.
inconsistent with the provisions of this Act) are hereby
incorporated with this Act (namely) :—

(1) The Lands Clauses Acts with the following
exception and modification—

(a) Section 127 of the Lands Clauses Con-
solidation Act 1845 (relating to the sale of
superfluous lands) is not incorporated with
this Act;

(b) The bond required by section 85 of the
Lands Clauses Consolidation Act 1845 shall
be under the corporate seal of the Corpora-
tion and shall be sufficient without the
addition of the sureties mentioned in that
section :

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(2) The Waterworks Clauses Act 1847 except—

(a) The words “ with the consent in writing
“ of the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44 of the Waterworks Clauses Act
1847;

(b) Sections 75 to 82 of the Waterworks
Clauses Act 1847 with respect to the amount
of profit to be received by the undertakers
when the waterworks are carried on for their
benefit and section 83 relating to accounts :

(3) The Waterworks Clauses Act 1863.

Interpreta-
tion.

4. In this Act the several words and expressions to
which meanings are assigned by the Acts wholly or
partially incorporated herewith or by the Public Health
Acts 1875 to 1925 have the same respective meanings
unless there be something in the subject or context
repugnant to such construction And in this Act unless
the subject or context otherwise requires—

“ The Corporation ” means the mayor aldermen and
burgesses of the borough of Margate;

“ The borough ” means the borough of Margate;

“ The council ” means the council of the borough;

“ The mayor ” “ the town clerk ” “ the treasurer ”
“ the medical officer ” “ the surveyor ” and “ the
sanitary inspector ” mean respectively the mayor
the town clerk the treasurer the medical officer
of health the surveyor and any sanitary inspector
of the borough and respectively include any
person duly authorised to discharge temporarily
the duties of those offices;

“ The borough fund ” “ the borough rate ” “ the
district fund ” “ the general district rate ” and
“ the general rate ” mean respectively the
borough fund the borough rate the district
fund the general district rate and the general
rate of the borough;

“ The tribunal ” means the tribunal or other
authority to whom any question of disputed
purchase money or compensation under this
Act is referred in pursuance of the Acquisition

of Land (Assessment of Compensation) Act A.D. 1926;
1919;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“Infectious disease” means (except where otherwise stated) any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;

“Child” means a person under the age of sixteen years;

“Sunday school” means any school or building in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction;

“The parish” means the parish of Margate;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed

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or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The Act of 1900” and “the Act of 1908” mean respectively the Margate Corporation Act 1900 and the Margate Corporation Act 1908.

PART II.

LANDS.

Power to
take lands.

5.—(1) Subject to the provisions of this Act the Corporation may enter on take and use for and in connection with the construction of the street works sea walls and promenades authorised by Part III. of this Act or for the purpose of providing space for the erection of buildings adjoining or near to such street works or for other the purposes of the said Part III. such of the lands in the borough delineated on the deposited plans and described in the deposited book of reference as they may require.

(2) The Corporation may also for and in connection with the said purposes enter upon take and use all or any part of the foreshore delineated on the deposited plans and described in the deposited book of reference and situate between high and low water marks of ordinary spring tides.

(3)—(i) Subject to the provisions of this Act the Corporation may also enter upon take and use such of the following lands in the borough as they may require—

(a) For the purpose of open spaces—

(i) The Green situate in Charlotte Place known as “Charlotte Place Green” numbered 515 on the deposited plans and described in the deposited book of reference;

(ii) Part of the open space known as “the Marine Terrace Green” numbered 516 on the deposited plans and described in the deposited book of reference;

(b) For educational purposes—

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Land situated at the junction of College and Addiscombe Roads and numbered 522 on the deposited plans and described in the deposited book of reference ;

(c) For educational purposes and allotments—

Land abutting partly upon College Road and partly upon St. Peter's Footpath and numbered 523 on the deposited plans and described in the deposited book of reference ;

(d) For housing purposes—

Three plots of building land abutting on the easterly side of King Edward Road in the Dane Valley and numbered 519 on the deposited plans and described in the deposited book of reference :

(ii) The Corporation after they shall have acquired the open space known as "the Marine Terrace Green" shall not erect or permit the erection of any building thereon.

6. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the borough for the correction thereof and if it appears to the justices hearing the application that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Kent and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands in accordance with such certificate.

Correction
of errors in
deposited
plans and
book of
reference.

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Power to
enter upon
property for
survey and
valuation.

7. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Period for
compulsory
purchase of
lands.

8. The powers of the Corporation for the compulsory purchase of the lands referred to in subsection (3) of the section of this Act of which the marginal note is "Power to take lands" shall cease after the thirty-first day of October nineteen hundred and twenty-nine and for the compulsory purchase of lands for the other purposes of this Act shall cease after the thirty-first day of October nineteen hundred and thirty-one.

For protec-
tion of
Royal Sea-
Bathing
Hospital.

9. Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not unless otherwise agreed in writing between them and the Royal Sea-Bathing Hospital at Margate enter on take or use any part of the land and premises belonging to the said hospital other than the land and premises coloured blue green and yellow on the plan signed in duplicate by Amos Nash on behalf of the said hospital and by Edward Brooke on behalf of the Corporation or utilise any part of the land and premises which may be entered on taken or used except by way of addition to the highway.

For protec-
tion of
Southern
Railway
Company.

10. Any difference as to the compensation payable by the Corporation to the Southern Railway Company (in this section referred to as "the company") in respect of the acquisition by the Corporation of the interests of the company in the portion of the forecourt of Margate Sands Station and in the forecourt of No. 246 Northdown Road acquired for the proposed Street Works Nos. 15 and 37 respectively shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the company or failing agreement to be appointed by the President of the Surveyors' Institution but in all other respects the provisions of the Acquisition

of Land (Assessment of Compensation) Act 1919 shall apply to the determination of such compensation. A.D. 1926.

11. For the protection of the guardians of the poor of the West Ham Union (in this section called "the guardians") the following provisions shall unless otherwise agreed in writing between the guardians and the Corporation apply and have effect (that is to say):—

For protection of guardians of poor of West Ham Union.

(1) If the Corporation give notice to the guardians that the Corporation require to purchase or take any part of the premises known as the Convalescent Home of the guardians in North-down Road in the borough the Corporation shall unless the guardians otherwise desire and so intimate in writing to the Corporation within twenty-one days after the service of such notice purchase the whole of such premises:

(2) The Corporation shall not enter upon any part of the said premises until after the expiration of two years and six months after the service by them upon the guardians of notice under section 18 of the Lands Clauses Consolidation Act 1845.

12.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction of private rights of way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

13. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and twenty-five if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not

Compensation in case of recently acquired interest.

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Benefits to be set off against compensation.

14. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or of the widening or improvement of any existing street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Further powers for the acquisition of land.

15.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the

purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either— A.D. 1926.
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(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or

(b) in such other manner as may be approved by the Minister of Health.

16.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Acts 1890 to 1923) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Retention and disposal of lands.

Provided that the Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained :

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Corporation in any case

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— this Act had not been passed.

(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

(3) Nothing in this section shall authorise the Corporation to erect any such buildings as are mentioned in section 22 (Corporation may erect reading-rooms &c.) of the Act of 1908 upon any part of the land referred to in the proviso to that section.

Proceeds of
sale of
surplus
lands.

17.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act (other than lands acquired under the section of this Act of which the marginal note is "Further powers for the acquisition of land") in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Provided that—

(a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted

of the borrowing powers conferred by or under this Act for the purpose of such purchase; A.D. 1926.

- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

18. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

19.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :— Owners may be required to sell parts only of certain premises.

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”;

- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner

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shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise;

(c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed;

(d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;

(e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and

order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner; A.D. 1926.

- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any of the scheduled properties.

20.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those

Dwelling-houses for persons in Corporation's employment.

A.D. 1926. — purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

PART III.

STREET IMPROVEMENTS AND SEA WALLS AND PROMENADES.

Power to
execute
works.

21. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands shown on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works in the borough described in this section with all proper and necessary junctions connections approaches sewers drains works and conveniences in connection therewith (namely) :—

STREET WORKS.

Street Work No. 1 A widening and improvement of Garlinge High Street on the westerly side commencing at a point about 320 feet south of the intersection of the centre lines of that street and Canterbury Road and terminating at a point 60 feet west of the intersection of the centre line of Garlinge High Street and the road leading to Dent-de-Lion;

Street Work No. 2 A widening and improvement of Garlinge High Street on the easterly side and Crow Hill Road on the northerly side;

Street Work No. 3 A widening and improvement of Garlinge High Street on the westerly side from the north-easterly corner of No. 1 Chapel Cottages to the south-easterly corner of No. 2 Chapel Cottages;

Street Work No. 4 A widening and improvement of Garlinge High Street on the easterly side

from a point about 8 feet north of the north-
westerly corner of the Wesleyan Chapel to
Birds' Avenue; A.D. 1926.
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Street Work No. 5 A widening and improvement
of Garlinge High Street on the westerly side
from a point about 12 feet south of the south-
easterly corner of the sub-police station (Kent-
mere) to the south-easterly corner of Flint
Cottage;

Street Work No. 6 A widening and improvement
of Westfield Road on the northerly side from
the footpath leading to Walton Road at the
back of No. 1 Waverley Road to Waverley
Road;

Street Work No. 7 A widening and improvement
of Westfield Road on the southerly side;

Street Work No. 8 A widening and improvement
of Canterbury Road railway bridge and
approaches on both sides;

Street Work No. 9 A widening and improvement
of Canterbury Road on the northerly side
from the south-easterly corner of Westonville
Garage Rancorn Road to Westbrook Road;

Street Work No. 10 A widening and improvement
of Canterbury Road on the northerly side
from Westbrook Road to Hatfeild Road;

Street Work No. 11 A widening and improvement
of Hartsdown Road on the westerly side
(including the widening of the westerly side
of the railway bridge and approaches) from
Canterbury Road to All Saints' Avenue;

Street Work No. 12 A widening and improvement
of Hartsdown Road on the easterly side
(including the widening of the easterly side
of the railway bridge and approaches) from
a point about 70 feet south of the intersection
of the centre lines of that road and Canterbury
Road to a point about 100 feet north of the
intersection of the centre lines of Hartsdown
Road and All Saints' Avenue;

Street Work No. 13 A widening and improvement
of Canterbury Road on the southerly side

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from Hartsdown Road to a point about 165 feet west of the intersection of the centre lines of Canterbury Road and Westbrook Road;

Street Work No. 14 A widening and improvement of Canterbury Road on the southerly side from Westbrook Road to Hatfeild Road;

Street Work No. 15 A widening and improvement of Canterbury Road and Marine Terrace on the southerly sides of those streets from All Saints' Road to the road between Dreamland and the Cinque Ports Hotel leading to Hall-by-the-Sea Terrace;

Street Work No. 16 An improvement of the junction of Marine Drive with Marine Terrace;

Street Work No. 17 A widening and improvement of Eaton Road on the westerly side;

Street Work No. 18 A widening and improvement of the westerly sides of Tivoli Road and Eaton Road from a point about 145 feet south-west of the intersection of the centre lines of Tivoli Road and Buckingham Road to the north-east corner of the forecourt of Kent Villa;

Street Work No. 19 A widening and improvement of Tivoli Road on the north-easterly side and Queen's Avenue on the south-westerly side from Alexandra Terrace to a point about 90 feet south-east of the intersection of the centre lines of Tivoli Road and Queen's Avenue;

Street Work No. 20 A widening and improvement of Queen's Avenue on the southerly side and Ramsgate Road on the westerly side from a point about 100 feet north-west of the intersection of the centre lines of Queen's Avenue and Ramsgate Road to the north-easterly corner of the forecourt of No. 3 Ramsgate Road;

Street Work No. 21 A widening and improvement of Tivoli Road on the westerly side from the south-easterly corner of the gardens at the entrance to Tivoli Park Avenue to the south corner of the garden of Tivoli Cottage;

Street Work No. 22 A widening and improvement of Tivoli Road on the easterly side and Beatrice Road on the southerly side from a point about 20 feet south-east of the northerly corner of the forecourt of Tivoli Lodge to a point about 15 feet west of the north-west corner of No. 7 Beatrice Road ; A.D. 1926.
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Street Work No. 23 A widening and improvement of Beatrice Road on the northerly side and Ramsgate Road on the westerly side from the south-west corner of the garden of No. 89 Ramsgate Road to a point about 20 feet north of the south-easterly corner of the said garden ;

Street Work No. 24 A widening and improvement of College Road on the northerly side and Beatrice Road on the southerly side from a point about 40 feet west of the intersection of the centre lines of College Road and the passage at the rear of Denmark Villas to a point about 60 feet west of the intersection of the centre lines of Beatrice Ramsgate and College Roads ;

Street Work No. 25 A widening and improvement of College Road on the southerly side ;

Street Work No. 26 A widening and improvement of Tivoli Road on the westerly side from Hartsdown Road to the north-easterly corner of the forecourt of No. 83 Tivoli Road ;

Street Work No. 27 A widening and improvement of Manston Road on the westerly side and Hartsdown Road on the southerly side ;

Street Work No. 28 A widening and improvement of College Road on the northerly side ;

Street Work No. 29 A widening of St. Peter's Road railway bridge on the easterly side ;

Street Work No. 30 A widening and improvement of Addiscombe Road on the northerly side and Park Crescent Road on the south-westerly side ;

Street Work No. 31 A widening and improvement of Northdown Road on the northerly side

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from a point about 110 feet east of the intersection of the centre lines of that road and Zion Place to a point about 165 feet west of the intersection of the centre lines of Northdown Road and Ethelbert Road;

Street Work No. 32 A widening and improvement of Northdown Road on the northerly side from Athelstan Road to Dalby Road;

Street Work No. 33 A widening and improvement of Northdown Road on the northerly side and Edgar Road on the westerly side from a point about 90 feet north-west of the intersection of the centre lines of Northdown and Edgar Roads to a point about 90 feet north of the said point of intersection;

Street Work No. 34 A widening and improvement of Northdown Road on the northerly side from Edgar Road to Cornwall Gardens;

Street Work No. 35 A widening and improvement of Zion Place on the westerly side from a point about 138 feet north of the south-easterly corner of the "Prospect" public house to Trafalgar Place;

Street Work No. 36 A widening and improvement of Northdown Road on the southerly side from Clifton Gardens to Clarendon Road;

Street Work No. 37 A widening and improvement of Northdown Road on the southerly side from Cliftonville Avenue to the Tramway Road (West Northdown Corner);

Street Work No. 38 A widening and improvement of Madeira Road on the westerly side;

Street Work No. 39 A widening and improvement of Madeira Road on the easterly side;

Street Work No. 40 A widening and improvement of Wyndham Avenue and Lower Northdown Avenue on the easterly sides of those roads;

Street Work No. 41 A widening and improvement of Dane Road on the northerly side and of Bath Road on the westerly side;

Street Work No. 42 A widening and improvement of Dane Road on the northerly side from

Bath Road to a point about 140 feet west of the intersection of the centre lines of Dane Road and Park Lane; A.D. 1926.
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Street Work No. 43 A widening and improvement of Lower Northdown Road on the southerly side;

Street Work No. 44 A widening and improvement of the Tramway Road on the westerly side;

Street Work No. 45 A widening and improvement of Millmead Road on the southerly side;

Street Work No. 46 A widening and improvement of Queen Street on the southerly side;

Street Work No. 47 A widening and improvement of Newgate Promenade on the southerly side.

SEA WALLS AND PROMENADES.

Promenade No. 1 A sea wall or embankment on or adjoining the foreshore with a footway or promenade commencing at the east end of the existing promenade and sea wall leading from the westerly boundary of the borough and terminating at the westerly end of the existing Westbrook Promenade and sea wall;

Promenade No. 2 A sea wall or embankment on or adjoining the foreshore with a footway or promenade from a point about 50 feet north of the north-easterly corner of the Westbrook concert pavilion to the entrance to the Marine Terrace Sands bathing pavilion;

Promenade No. 3 A sea wall or promenade on or adjoining the foreshore with a footway or promenade commencing at the termination of Promenade No. 2 and terminating at a point about 90 feet north-west of the north-west corner of the clock tower;

Promenade No. 4 A sea wall or embankment on or adjoining the foreshore with a footway or promenade from a point about 65 feet north-east of the north-east corner of the Clifton Baths swimming baths to the Newgate Gapway Bridge.

A.D. 1926.

Limits of
deviation.

22. In the construction of the works authorised by this Part of this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding three feet upwards or downwards. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to
make sub-
sidiary
works.

23.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the purposes of this Part of this Act and as part of the works to be executed under the powers of this Part of this Act may execute or do any of the following works or things (namely)—

- (a) make junctions and communications with any existing streets intersected or interfered with by or contiguous to the works authorised by this Part of this Act or any of them and divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with any of such works or otherwise;
- (b) execute any works for the protection of any adjoining land or buildings;
- (c) execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings; and
- (d) raise lower alter divert stop up or otherwise interfere with any tramway light railway drain sewer channel or gas or water main or pipe or electricity wire or apparatus within the said limits providing a proper substitute before interrupting the traffic on any such tramway or light railway or the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not alter divert stop up or otherwise interfere with any telegraphic

line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878. A.D. 1926. —

24. Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. Power to alter steps areas pipes &c.

25.—(1) The Corporation during the execution of the powers of this Part of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Corporation shall provide reasonable access for foot passengers bona fide going to or returning from any such house.

(3) The Corporation at all times during the execution of any such powers shall maintain a proper and sufficient access both for vehicular and pedestrian traffic to and from the stations and depots of the Southern Railway Company.

26. Any paving metalling or material excavated by the Corporation in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit. Application of road materials excavated in construction of works.

27. All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired. Land laid into streets to form part thereof.

A.D. 1926.

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For further
protection
of Southern
Railway
Company.

28. For the protection of the Southern Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the Corporation and the railway company have effect (that is to say) :—

- (1) In this section the expression "the works of the Corporation" means the Street Works Nos. 8 11 12 18 19 20 21 22 28 and 29 (including works of maintenance repair renewal or removal) executed in pursuance of this Act or of any Act incorporated therewith which involve interference with or in any way injuriously affect the railways bridges roads and works of the railway company (in this section together referred to as "the railways of the railway company"):
- (2) The works of the Corporation shall be executed under the superintendence (if such be given) and to the reasonable satisfaction of the principal engineer of the railway company (in this section referred to as "the engineer") at such times as shall be previously submitted to and shall be approved by him in writing and (except in cases of emergency) according to plans and sections to be previously submitted to and reasonably approved by him or in case of difference determined by arbitration in manner hereinafter provided Provided that if the engineer does not express his approval or disapproval of the said plans and sections within twenty-eight days after the same shall have been submitted to him he shall be deemed to have approved thereof:
- (3) The works of the Corporation shall be executed by and at the expense of the Corporation (except as in this section otherwise provided) who shall restore and make good to the reasonable satisfaction of the engineer the railways of the railway company which may be disturbed or interfered with in the course of such execution and so as to cause as little injury as may be to the railways of the railway company and so as not to cause any interference with the passage or conduct of traffic on the railways of the

railway company Provided nevertheless that if the engineer shall think it necessary in any case for the works of the Corporation to be executed or carried out by the railway company such works may be executed and carried out by the railway company accordingly and the reasonable expenses incurred by the railway company in so doing shall on demand be repaid to them by the Corporation :

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- (4) The Corporation shall not take or acquire any of the lands belonging to the railway company without their consent but shall acquire only and the railway company shall grant such easements across over or under any of the railways works or property of the railway company as may be necessary for constructing or maintaining the works of the Corporation and shall pay to the railway company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts as defined by this Act with respect to the acquisition of lands otherwise than by agreement and the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (5) The Corporation shall bear and on demand pay to the railway company the reasonable costs of the superintendence by the engineer (if given) and of watching lighting and protecting the railways of the railway company with reference to and during the carrying out and subsequent repair and maintenance of the works of the Corporation and the superintendence of the engineer (if given as aforesaid) shall not relieve the Corporation from any liability which would otherwise attach to them for any accident which might be occasioned by or through the said works or by their contractors agents or workmen :

A.D. 1926.
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- (6) If any injury or damage to or interruption of traffic on the railways of the railway company should arise in any way owing to the construction existence or failure of the works of the Corporation the Corporation shall forthwith make full compensation to the railway company in respect thereof :
- (7) The works of the Corporation shall be at all times maintained in good repair by the Corporation and in default of their being so maintained the railway company may from time to time by notice in writing signed by the engineer and delivered at the office of the town clerk require the Corporation to forthwith put into good repair the works of the Corporation which may be in want of repair and if the Corporation for seven days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof the railway company without any further notice to the Corporation may repair the same and all expenses incurred by them in or about such repair shall be repaid to them by the Corporation Provided that in case of accidents happening or immediate danger being apprehended to the railways of the railway company by reason of the works of the Corporation being in want of repair the railway company may without giving such notice as aforesaid make such repairs as may be immediately necessary and the expenses of the same shall on demand be repaid as hereinbefore provided :
- (8) The Corporation shall from time to time pay to the railway company any additional expenses which the railway company under their existing powers may reasonably incur in effecting any repair renewal widening alteration or extension of the railways of the railway company by reason of the existence of any works of the Corporation in over upon across or under the railways of the railway company :

(9) Any dispute or difference which may arise between the Corporation and the railway company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by the arbitration of a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration :

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(10) The provisions of this section shall except as otherwise expressly provided be in addition to and not in substitution for or derogation of any other provisions of this Act or any Act incorporated therewith to the benefit of which the railway company would otherwise be entitled.

29.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

Works below high-water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

30. During the construction of any of the sea walls and promenades by this Act authorised on or near the foreshore and also at all times after completion thereof the Corporation shall make and permanently maintain at their own expense and to the satisfaction of the Board

Accesses to and from shore &c.

[Ch. lxxxi.] *Margate Corporation* [16 & 17 GEO. 5.]
Act, 1926.

A.D. 1926. — of Trade for the free use of the public on the seaward side of the said sea walls and promenades such boat slips or other facilities for boats and for passengers landing therefrom or embarking thereon as the Board of Trade may from time to time direct or approve.

Lights on
works
during con-
struction.

31.—(1) The Corporation shall at or near such part of the works by this Part of this Act authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent
lights on
works.

32.—(1) After the completion of the sea walls and promenades by this Part of this Act authorised the Corporation shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Survey of
works by
Board of
Trade.

33. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Corporation under the powers of this Part of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due

from the Corporation to the Crown and shall be recover- A.D. 1926.
able either as a debt due to the Crown or by the Board
of Trade summarily as a civil debt. —

34.—(1) In case of injury to or destruction or decay Provision
of the works by this Part of this Act authorised or any against
part thereof so far as the same shall be constructed on danger to
under or over any tidal waters or tidal lands below navigation.
high-water mark of ordinary spring tides the Corporation
shall lay down such buoys exhibit such lights or take
such other means for preventing so far as may be danger
to navigation as shall from time to time be directed by
the Corporation of Trinity House Deptford Strond and
shall apply to that corporation for directions as to the
means to be taken.

(2) If the Corporation fail to comply in any respect
with the provisions of this section they shall be liable on
summary conviction to a penalty not exceeding ten
pounds and in the case of a continuing offence to an
additional penalty not exceeding one pound for every
day during which they omit after conviction thereof so to
apply or refuse or neglect to obey any directions given
in reference to the means to be taken.

35.—(1) Where any work constructed by the Cor- Abatement
poration under the powers of this Part of this Act and of work
situate wholly or partially on under or over the shore abandoned
or bed of the sea or of any creek bay arm of the sea or or decayed.
navigable river communicating therewith below high-
water mark of ordinary spring tides is abandoned or
suffered to fall into decay the Board of Trade may by
notice in writing either require the Corporation at their
own expense to repair and restore such part of such work
as is situate below high-water mark of ordinary spring
tides or any portion thereof or require them to abate or
remove the same and restore the site thereof to its former
condition to such an extent and within such limits as the
Board of Trade may think proper.

(2) Where any part of any such work which has been
abandoned or suffered to fall into decay is situate above
the high-water mark of ordinary spring tides and is in
such condition as to interfere or to cause reasonable
apprehension that the same may interfere with the right
of navigation or other public rights over the foreshore
the Board of Trade may include any such part of such

A.D. 1926. work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Corporation they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

For protec-
tion of Isle
of Thanet
Gas Light
and Coke
Company.

36. For the protection of the Isle of Thanet Gas Light and Coke Company (in this section called "the company") the following provisions shall notwithstanding anything in this Part of this Act contained and unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

- (1) In this section "apparatus" means and includes all or any mains pipes syphons tubes fittings or other apparatus belonging to the company and "authorised work" means and includes any work authorised by this Part of this Act:
- (2) Before commencing to execute any authorised work in any road in which any apparatus is laid the Corporation shall give fourteen days' notice to the company of their intention to execute such work and shall at the same time deliver to the company for their reasonable approval a plan and section of such authorised work and such work shall not be executed except in accordance with such plan and section as may be so approved or as determined by arbitration under this section. Provided that in the event of such plan and section not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the company. The Corporation shall also if required to do so by the company give them any such further information in relation to such authorised work as they may reasonably require:
- (3) If it should appear to the company that the execution of such authorised work as proposed would interfere with or endanger any such

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apparatus or interfere with the access thereto or impede the supply of gas the company may within a period of fourteen days from the receipt by the company of the notice referred to in subsection (2) of this section give notice to the Corporation to alter the position of such apparatus in such manner as may be reasonably necessary and any difference as to the necessity of any such alteration or the manner of carrying out the alteration shall be settled by arbitration under this section and all such alterations shall save as hereinafter provided be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the company as the circumstances will admit and to the reasonable satisfaction of the engineer of the company and under his superintendence if he think fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give :

- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus or do anything to endanger such apparatus or impede the passage of gas into or through any apparatus or interfere with the access thereto without the consent of the company or in any other manner than the company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of gas as sufficiently as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof ready for use and to the reasonable satisfaction of the engineer of the company :
- (5) Whenever by reason of the exercise by the Corporation of the powers of this Part of this Act any apparatus (other than apparatus for which new apparatus has been substituted by or at the expense of the Corporation under the provisions of this section) shall be rendered derelict useless or unnecessary the Corporation

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shall forthwith pay to the Company such a sum as may be agreed between the Corporation and the company or as failing such agreement may be determined by arbitration as hereinafter provided to be the then value of such apparatus as apparatus and such apparatus shall thereupon become the property of the Corporation and in addition to such payment the Corporation shall pay to the company the reasonable cost of and incidental to the cutting off of any such derelict useless or unnecessary apparatus from any other apparatus of the company and of and incidental to any other works or things rendered necessary or expedient in consequence of such apparatus being rendered derelict useless or unnecessary by the exercise by the Corporation of the powers of this Act :

- (6) Wherever by reason of the exercise by the Corporation of the powers of this Part of this Act any replacement of old apparatus by new apparatus or any addition to existing apparatus shall be rendered reasonably necessary the Corporation at their own expense shall provide all such apparatus of a quality equal to that replaced or added to and lay and connect the same in such position as may be reasonably required by the company to the reasonable satisfaction of the engineer of the company and in such manner as not to cause without the consent in writing of the company any interruption in the continuous supply of gas to the inhabitants of the district :
- (7) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus and shall make full compensation to the company for any loss (other than loss of revenue) damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by the company with gas :
- (8) If the company shall desire to execute the work connected with any alteration of position removal displacement or renewal of or necessary

additions to any apparatus under this section or shall desire to provide such new or additional apparatus and shall give not less than seven days' notice in writing thereof to the Corporation before they commence such work the company may themselves carry out such work and all reasonable expenses properly incurred by them in connection with such work or the provision of apparatus shall be repaid to them by the Corporation :

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- (9) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice thereof in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. In settling any question under this section an arbitrator shall have regard to any duties or obligations which the company may be under in respect of their apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the company's apparatus is used.

PART IV.

WATER SUPPLY.

37.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterwork hereinafter described :—

Power to
make water-
works.

Waterwork No. 1 A service reservoir situated in the parishes of Garlinge and Minster in the rural district of Isle of Thanet in the county of Kent adjoining the south-western side of the existing service reservoir of the Corporation.

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(2) In addition to the waterwork hereinbefore described the Corporation may upon any lands for the time being belonging to them or over which they have or obtain easements make and maintain all such buildings machinery roads tramroads works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the said waterwork or necessary for inspecting maintaining repairing cleansing managing working or using the same but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Limits of deviation.

38. In the construction of the waterwork authorised by this Part of this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections not exceeding ten feet upwards and to any extent downwards.

Period for completion of works.

39. If the works authorised by this Part of this Act and delineated on the deposited plans are not completed within five years from the thirty-first day of December nineteen hundred and twenty-six then on the expiration of that period the powers granted by this Act for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed.

Works to form part of water undertaking.

40. Subject to the provisions of this Act the works by this Act authorised shall for all purposes be deemed part of the water undertaking of the Corporation.

Temporary discharge of water into streams.

41.—(1) For the purpose of constructing enlarging extending altering repairing cleansing or examining any of the waterworks of the Corporation the Corporation may cause the water in any such works to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration.

42.—(1) If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

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 Power to Corporation to repair communication pipes.

(2) Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given notice to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner thereof to such owner not less than twenty-four hours' previous notice of their intention so to enter.

43. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation.

Maintenance of common pipe.

PART V.

STREETS BUILDINGS SEWERS AND DRAINS.

44. Where in the opinion of the Corporation repairs the cost of which will not exceed five pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Corporation may execute such repairs as they deem

As to urgent repairs of private streets.

A.D. 1926. necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect the operation in regard to such street at any subsequent date of the Private Street Works Act 1892 or of section 19 (As to urgent repairs of private streets) of the Public Health Acts Amendment Act 1907.

Adjust-
ment of
boundaries
of streets.

45.—(1) The Corporation may enter into and carry into effect agreements with any owner of lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange for other land For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the borough and if during such period of one month any four inhabitant householders of the borough by themselves or their agent give notice to the Corporation of their intention to appeal under the provisions of this section the Corporation shall not proceed with their proposals (unless the notice of appeal is withdrawn) pending a decision on or a withdrawal of the appeal The advertisement in the newspaper shall include notice of this proviso.

(3) Any four inhabitant householders of the borough may appeal to a court of summary jurisdiction against any proposal of the Corporation for an adjustment of the boundaries of a street under this section within the period mentioned in subsection (2) of this section.

(4) On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(6) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration as though the Corporation or the owner of the adjoining land (as the case may be) were "undertakers" within the meaning of the said Act.

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46.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estates or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister of Health and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

Adjustment
of bounda-
ries of
estates.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal

A.D. 1926.. imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister of Health and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable.

Banners and
signs over
streets.

47.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering suspended across or hung over any street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the street across or over which such banner streamer sign or lettering is suspended or hung they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period

not being less than seven days as may be specified in the notice. A.D. 1926.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer sign or lettering without permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the twentieth day of November nineteen hundred and twenty-five.

(4) Any person aggrieved by any requirement of any notice of the Corporation or the withholding of permission by the Corporation or the conditions attached to any such permission under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

48.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation. As to erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do

[Ch. lxxxi.] *Margate Corporation* [16 & 17 GEO. 5.]
Act, 1926.

A.D. 1926. — fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding twenty shillings.

Restriction
on erection
of tempo-
rary stands
&c.

49.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such regulations as the Corporation may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

As to pave-
ment lights.

50.—(1) From and after the passing of this Act it shall not be lawful for the owner or occupier of any property to construct in any pavement forming part of any street in the borough any work for the admission of light through such pavement to any room or premises situate under or adjoining the same (in this section referred to as "pavement lights") without the consent in writing of the Corporation.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Amendment
and applica-
tion of
section 17 of
Public
Health Acts
Amendment
Act 1907.
Direction
signs.

51. Section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Public Health Acts Amendment Act 1907 shall in its application to the borough be read and have effect as if subsection (2) of the said section were omitted therefrom.

52.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street

signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character. A.D. 1926.
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(2) Before putting up or painting a sign on a house building or place the Corporation shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

53.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than such line. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Section 52 (No buildings allowed until street formed) of the Act of 1900 is hereby repealed.

54.—(1) If the Corporation shall by resolution determine that any stall structure or other erection Provisions as to fore-courts.

A.D. 1926. on any forecourt within the borough is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period not being less than seven days as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by any requirement of any notice of the Corporation under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service upon him of such notice by the Corporation provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed upon every such notice served by the Corporation.

Elevation of
new build-
ings fronting
street.]

55.—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary for the deposit by a person intending to construct a building in a street within the borough of drawings of the elevations of such building (in this section called "elevations").

(2) For the purpose of assisting the Corporation in the exercise of the power of approving or disapproving elevations hereinafter conferred a standing advisory committee of three members (in this section called "the advisory committee") shall be constituted for the borough of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said Institute one member shall be a Fellow of the Surveyors' Institution to be nominated by the President of the said Institution

and one member shall be a justice of the peace to be nominated by the council : A.D. 1926.

Provided that a member of the council shall be disqualified from being a member of the advisory committee.

(3) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated. The Corporation shall pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit.

(4) Where the elevations of any building proposed to be constructed in any street are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the delivery of the elevations—

(a) approve the elevations ; or

(b) if they shall consider that having regard to the general character of the existing buildings in the street or of the buildings proposed therein to be erected the building to which the elevations relate would seriously disfigure the street whether by reason of the height of the building or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building is considered to be objectionable.

(5) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building.

A.D. 1926.

(6) (a) The person by whom the elevations were deposited shall be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(b) The advisory committee may determine the reference in such manner as they in their discretion shall think fit and they shall within one month after the receipt of the reference decide whether in their opinion the elevations should be approved or disapproved and any such decision shall have effect as if it were an approval or disapproval (as the case may be) of the elevations by the Corporation and in the latter case shall contain a statement of the grounds on which the proposed building is considered to be objectionable.

(7) Every such decision shall forthwith be reported to the Corporation and upon receipt thereof by the Corporation a copy shall forthwith be sent by the Corporation to the person by whom the elevations were deposited.

(8) In the event of a division of opinion among the members of the advisory committee upon reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number.

(9) Where the elevations of a building have been disapproved under this section it shall not be lawful to erect the building until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(10) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct. Where such costs or part thereof shall be payable to the person depositing the elevations they shall be recoverable by that person and where such costs or part thereof shall be payable to the Corporation they shall be recoverable by the Corporation and in both cases summarily as a civil debt.

(11) The provisions of this section shall not apply to a building (not being a dwelling-house) belonging to any

person or body of persons authorised by virtue of any Act of Parliament or any Order having the force of an Act of Parliament to manufacture gas or to supply electricity or water or to navigate on or use any river canal dock harbour or basin or to demand any tolls or dues in respect of such river canal dock harbour or basin and used or intended to be used exclusively for such purposes under the provisions of such Act of Parliament or Order.

A.D. 1926.

56. Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 in its application to the borough shall be extended so as to empower the Corporation to make byelaws with respect to—

Byelaws as to erection of dwelling-houses under continuous roof.

- (i) the number of dwelling-houses which may be erected in one block or in one continuous row ;
- (ii) the provision of an open space for separating blocks or rows of dwelling-houses and the width of such space ;
- (iii) the situation construction and height of walls or fences upon or across such open space.

57.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Means of escape from buildings in case of fire.

(2) The means of escape in case of fire provided in connection with any such building as aforesaid shall not

A.D. 1926. be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(3) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Food
storage
accommoda-
tion to be
provided.

58. Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Area of
habitable
rooms.

59. Section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Powers on
inspection.

60. In exercising any powers of entry upon and inspection of any building or works in course of construction the surveyor and his assistants shall have from the builder or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works. Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor or his assistants in the use of such ladders scaffolding and plant as aforesaid shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Dilapidated
and
neglected
buildings.

61.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property

in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may order the owner at his option either to take down or to repair such building (in this section referred to as a "neglected structure") or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Corporation within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing. A.D. 1926.

(2) If the order is not obeyed the Corporation may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

62.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the

As to
defective
drains &c.

A.D. 1926. expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Amendment
of section 62
of Public
Health Act
1875.

63. Section 62 (Local authority may require houses to be supplied with water in certain cases) of the Public Health Act 1875 shall be read and have effect as if the words "or the medical officer of health" were inserted therein after the words "the surveyor."

Improper
construc-
tion or
repair of
water-closet
or drain.

64.—(1) If a water-closet drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

As to repair
of drains.

65. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding twenty pounds to cause the same to be repaired

and the expenses of such repairs may be recovered by them from the owner or owners of such drain in such proportions as the surveyor shall determine : A.D. 1926.

Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

66. If any person cause any drain water-closet earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds : Wilful damage to drains water-closets &c.

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

67. For the further protection of the Isle of Thanet Gas Light and Coke Company (in this section called "the company") the following provision shall notwithstanding anything in this Part of this Act contained and unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :— For further protection of Isle of Thanet Gas Light and Coke Company.

No agreement shall be entered into under the section of this Act of which the marginal note is "Adjustment of boundaries of streets" with respect to any street or lands in which any main pipe syphon tube fitting or other apparatus is laid until the expiration of one month from the date on which notice in writing of the proposals has been given to the company and the company shall have the same right of appeal against any such proposals as is conferred by the said section on any four inhabitant householders of the borough.

68. The provisions of the sections of this Part of this Act of which the marginal notes are :— Saving for Southern Railway Company.

"As to urgent repairs of private streets";

"Banners and signs over streets";

A.D. 1926.

- “ As to erection of retaining walls ” ;
- “ Provisions as to forecourts ” ;
- “ Elevation of new buildings fronting street ” ;
- “ Powers on inspection ” ;
- “ Dilapidated and neglected buildings ” ;
- “ As to defective drains &c.” ;
- “ Improper construction or repair of water-closet or drain ” ;
- “ As to repair of drains ” ;

shall not extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the Southern Railway Company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by such company so long as such building or lands respectively are used for the purposes (other than for a dwelling-house) of that company's railways with the authority of Parliament.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Definition
for purposes
of this Part
of Act.

69. For the purposes of the sections of this Act of which the marginal notes are “ Parents to notify infectious disease ” “ Power to close Sunday schools and exclude children from entertainments ” and “ Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails ” respectively the expression “ infectious disease ” includes in addition to the diseases referred to in the section of this Act of which the marginal note is “ Interpretation ” measles German measles whooping cough chicken-pox scabies ringworm and influenza.

Information
to be fur-
nished as to
infectious
disease.

70.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably

require for the purpose of enabling measures to be taken to prevent the spread of the disease. A.D. 1926.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889 and the expression "infectious disease" shall include pulmonary tuberculosis.

71.—(1) Any person being a parent or having the care or charge of a child attending at a school in the borough who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings. Parents to notify infectious disease.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) For the purposes of this section the expression "school" shall include a Sunday school.

72.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with. Power to close Sunday schools and exclude children from entertainments.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly

A.D. 1926. wilfully failing to comply with any such requirement shall
— for every such failure be liable to a penalty not exceeding
five pounds.

Restriction
on attend-
ance of
children
at Sunday
schools and
places of
assembly
when
infectious
disease
prevails.

73.—(1) No person of or exceeding the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer or school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

As to filthy
premises.

74.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation or a committee of the council are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

75.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within a time to be fixed in the notice.

A.D. 1926.
—
Disinfection
in case of
tuberculosis.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have

A.D. 1926. been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the negligent exercise by the Corporation of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

Regulation
dustbins.

76.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any covered ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation

under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings. A.D. 1926.

77. The Corporation may make byelaws for securing the proper ventilation and lighting of and for the prevention of insanitary conditions (a) in or about or arising out of any existing stable (whether the same is used as such at the passing of this Act or not) or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act. Byelaws as to stables.

78.—(1) Where the Corporation's veterinary surgeon has certified that any infectious or parasitic disease has appeared in any stable cowshed or other place within the borough where animals are kept and the medical officer has thereupon certified that such stable cowshed or place cannot be efficiently disinfected a court of summary jurisdiction on complaint by the Corporation may make an order requiring the owner to demolish such stable cowshed or place or such part or parts thereof as they may think fit and to destroy the materials thereof in such manner as the order may prescribe. As to infected stables and other places.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may themselves execute the order and all expenses incurred by them under this section may be recovered by them from the owner but without prejudice to his right to recover the same from any lessee or other person occupying the stable cowshed or place.

79.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the borough which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be. Power to close slaughter-houses if injurious to public health.

A.D. 1926. — specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements with regard thereto and if within the said period of three months the owner or occupier of such slaughter-house shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall

be liable for each offence to a penalty not exceeding five pounds. A.D. 1926.

80.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by section 44 of the Public Health Act 1925 and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade. Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is "As to appeal" and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection. Discontin-
tinuance
of offensive
trade.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Corporation. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

81. The power of the Corporation to make byelaws under section 26 of the Public Health Acts Amendment Byelaws as
to refuse.

A.D. 1926. — Act 1890 shall extend to refuse which is not faecal or offensive or noxious matter or liquid.

Names of
laundrymen
to be
furnished.

82.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who offends against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

For regulat-
ing manu-
facture and
sale of ice-
cream &c.

83.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the borough omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed Provided that no compensation shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises after such seizure and while any such person is suffering from infectious disease.

(3) Every vendor of or dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand or from a pail container or similar receptacle used without a cart

barrow or other vehicle shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand pail container or receptacle and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings. A.D. 1926.

(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of inspection of the materials or commodities or articles of food in the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity and of any cart barrow or other vehicle or stand pail container or receptacle in from or on which the same are offered for sale as an officer of the Corporation would have under section 72 (Precautions against contamination of food intended for sale) of the Public Health Act 1925 in the cases therein mentioned and any person refusing inspection of the materials or commodities or articles of food in any such premises or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds.

(5) Section 34 (For regulating manufacture and sale of ice-cream &c.) and section 35 (Inspection of premises of dealer in ice-cream) of the Act of 1908 are hereby repealed.

84.—(1) The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the manufacture preparation storage transport or exposure for sale of any article intended to be sold for the food of man. Byelaws as to food.

(2) Before confirming any byelaws made under this section as regards any business carried on in any factory or workshop to which the Factory and Workshop Acts 1901 to 1920 apply the Minister of Health shall consult the Secretary of State.

(3) At least one month before applying to the Minister of Health for confirmation of any byelaws made under this section applicable to the storage or transport by a railway company of any article intended for the food of man the Corporation shall give notice to the company of their intention to make such

A.D. 1926. — application and such notice shall be accompanied by a copy of the proposed byelaws.

(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of a byelaw made under this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Byelaws as to transport of food.

85. The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the transport of food.

Registration of premises used for preparation of potted and preserved foods.

86.—(1) Any premises used or proposed to be used for the preparation or manufacture of potted pressed pickled or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

As to inspection of premises used for storage of food.

87.—(1) On any inspection carried out by the medical officer sanitary inspector or any other officer of the Corporation under the provisions of section 72 of the Public Health Act 1925 such officer shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the agent of such person his intention to have the same analysed by the public

analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the public analyst. A.D. 1926.

(2) The expression "public analyst" in this section means the analyst appointed by the Corporation for the purposes of the Sale of Food and Drugs Acts 1875 to 1907.

88. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale or in the course of delivery after sale for the food of man and the provisions of such sections shall apply accordingly. Further powers in relation to unsound food.

89.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section so far as they relate to advertisements in newspapers have been complied with and the production of a certificate purporting to be signed by an officer or servant of the Corporation that the notice required by this section has been affixed outside the town hall and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

A.D. 1926.

PART VII.

POLICE AND HACKNEY CARRIAGES.

Regulations
for control-
ling traffic.

90.—(1) The Corporation may from time to time make regulations prescribing within the central area referred to in subsection (10) of this section—

- (a) the streets which are not to be used for traffic by vehicles of any specified class or classes either generally or during specified times;
- (b) the streets which are not to be used by omnibuses when plying for hire within or passing through the borough;
- (c) the streets along which vehicular traffic shall pass in one direction only and the direction in which such traffic shall pass;
- (d) the places at which by reason of danger to the public or congestion of traffic omnibuses shall not stop to take up or set down passengers:

Provided that no regulation made under paragraphs (a) or (c) of this subsection shall apply to any vehicle ordinarily engaged in the delivery or collection of goods at or from any premises within the central area whilst so engaged.

(2) Before any regulations made under this section shall come into force the Corporation shall submit the same to the Minister for his approval and shall give notice of the subject-matter of the regulations by advertisement in a local newspaper circulating in the borough and in the London Gazette and in such other manner (if any) as the Minister may direct. The said notice shall name a place where copies of the regulations can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the regulations may make representations thereon to the Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The Minister shall consider any regulations submitted to him by the Corporation and any representations thereon which may be duly made and may

approve the regulations with or without modifications or may disapprove the same. A.D. 1926.

(4) Before approving any regulations the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the Corporation shall pay to the Minister any expenses incurred by him in relation to any such inquiry including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the Minister for the services of such person.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed regulations by advertisement in a local newspaper circulating in the borough and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The regulations shall take effect as approved by the Minister and shall come into force on a date to be fixed by him.

(7) The Corporation shall cause notice to be given of all regulations approved under this section by advertisement in a newspaper circulating in the borough and otherwise in such manner as may be prescribed by the Minister.

(8) A copy of any regulations approved under this section purporting to be signed by the town clerk and certified by him to be a true copy and to have been duly approved shall be evidence (until the contrary is proved) in all legal proceedings of the due making approval and existence of such regulations without further or other proof.

(9) Any person who after warning given by word or signal by a police constable authorised to direct traffic shall wilfully contravene any regulations made and approved under this section shall be liable to a penalty not exceeding forty shillings.

(10) In this section—

(a) "The central area" means any part of the borough which is within half a mile of the seashore;

A.D. 1926.

- (b) "Stand" means a place where omnibuses may stop a longer time than is necessary for the taking up and setting down of passengers desirous of entering or leaving the same;
- (c) "The Minister" means the Minister of Transport; and
- (d) "Specified" means specified in any regulations made or approved under this section.

Regulations
as to stands
or stopping
places of
omnibuses.

91.—(1) The Corporation may make regulations prescribing within the borough—

- (a) as respects omnibuses in general or omnibuses of any particular class or used on any particular route or running according to a published timetable the stands which may be occupied exclusively by them and the places where they may stop for longer than is necessary for the purpose of picking up and setting down passengers; and
- (b) the time during which any omnibus shall be allowed to remain at a prescribed stand or stopping-place;

and any omnibus standing upon any such stand or stopping place in accordance with regulations made under this section shall be deemed to be within the exception in the ninth paragraph of section 28 of the Town Police Clauses Act 1847.

(2) Upon the coming into force of the regulations first made under this section the sixth paragraph of section 6 of the Town Police Clauses Act 1889 shall cease to extend to the borough and any byelaws made by the Corporation under that paragraph shall be repealed.

(3) Where the Corporation propose to make regulations under this section they shall cause notice of their proposal and a statement of the effect of the proposed regulations to be published in at least one newspaper circulating within the borough and shall serve a copy of the notice upon the proprietor of every omnibus licensed to ply for hire within the borough.

(4) Every such notice shall indicate the date (which shall not be less than twenty-eight days) within which any objection to the regulations shall be sent in writing

to the Corporation and shall contain a notification of the place at which copies of the proposed regulations may be obtained free of charge. A.D. 1926.
 —

(5) The Corporation shall consider and determine any objection to the proposed regulations which is sent to them in writing within the time fixed in that behalf and shall send notice of their decision to the objector who if he is dissatisfied with their decision may within fourteen days after the receipt of the notice appeal to the Minister of Transport (in this section referred to as "the Minister").

(6) A notification of the right of appeal under this section shall be included in any notice sent by the Corporation of their decision on an objection to the regulations and upon any appeal being made to the Minister notice in writing of the appeal and of the grounds thereof shall be given by the appellant to the Corporation.

(7) The Minister shall consider any appeal duly made to him and may make such order in the matter as he thinks fit and his decision shall be final.

(8) Before making any order under this section the Minister may and if an appeal duly made is not withdrawn shall (unless the appeal appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the provisions in subsections (4) and (5) of the section of this Act the marginal notice whereof is "Regulations for controlling traffic" as to expenses and notices of local inquiries shall extend to any local inquiry so directed by the Minister.

(9) Where an objection has been made to regulations proposed by the Corporation under this section the regulations shall not be sealed by the Corporation until after the expiration of the time within which an appeal may be made by the objector to the Minister or if an appeal to the Minister has been made by the objector until after the determination or withdrawal of the appeal.

92. Section 24 of the Municipal Corporations Act 1882 which relates to the proof of byelaws shall extend to regulations made by the Corporation as that section extends to byelaws so made. Evidence of regulations made by Corporation.

A.D. 1926.

Power to grant
occasional
licences for
hackney car-
riages and other
public vehicles.

Inspection
and certifi-
cation of
taximeters.

93. An occasional licence for a hackney carriage omnibus or other public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

94.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the borough to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

Byelaws as
to hackney
carriages.

95. The power to make byelaws conferred upon the Corporation by section 68 of the Town Police Clauses Act 1847 shall be extended so as to include power to make byelaws for all or any of the following purposes (that is to say) :—

(a) For the examination and inspection of hackney carriages at such times and places as may be prescribed by such byelaws including an examination and inspection within one month before the annual licensing day or any adjourned licensing day :

(b) For the cessation of user of a hackney carriage which at any time fails in any way to comply with the requirements of the byelaws respecting the fitness of hackney carriages for public hire :

(c) For the furnishing by the owner of every hackney carriage to the inspector of hackney carriages or any police constable on request being made by him of the name and place of abode of any person who was authorised to drive such carriage at any specified time within seven days previous to such request being made. A.D. 1926.

96. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Corporation within the borough on days appointed for carnivals or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours. Power to make regulations as to traffic on carnival &c. days.

97. The Corporation may delegate their powers under section 21 (Power to make orders for preventing obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 and under the last preceding section of this Act to a committee consisting of not less than five members of the council and any orders made or directions given by such committee under the said section shall have the same force and effect as if made or given by the council. As to street traffic.

98. The Corporation may make byelaws for prohibiting or regulating the distribution of handbills or the soliciting of alms on any street road promenade parade or public walk on the sea front or at any place in any street within fifty yards thereof or on the seashore. Byelaws as to promenades &c.

99.—(1) No person shall in any street road promenade parade public walk garden or place of recreation on the sea front or at any place in any street within fifty yards thereof or on the seashore or beach (above or below high-water mark) within or adjoining the borough importune any person by touting for a hotel lodging-house refreshment-house shop garden theatre tramway light railway hackney carriage or any place of amusement or without the consent in writing of the Corporation hawk sell or offer for sale any article or commodity. Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number Prohibition of touting and hawking on promenades &c.

A.D. 1926. — of persons and upon such terms and conditions as the Corporation may think fit.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding twenty shillings.

Power to
appoint
officers.

100. The Corporation may appoint officers for securing the observance of the provisions of all Acts relating to parks and pleasure grounds and the seashore in the borough and of the byelaws and regulations made under any such Act and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

PART VIII.

RATING PROVISIONS.

Water rate
may be
collected
with general
rate.

101.—(1) From and after the date of the first new valuation under the Rating and Valuation Act 1925 any water rate or charge payable to the Corporation may be collected together with the general rate of the borough (in this Part of this Act called “the general rate”) and the same books may be used for the said water rate and charge and the general rate.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rate or charge shall be in such form as the Minister of Health may from time to time prescribe.

(3) The Corporation may demand water rates and charges by half-yearly instalments in advance on the thirty-first day of March and the thirtieth day of September in each year but so that the same shall not be recoverable until the expiration of two months from the said thirty-first day of March and thirtieth day of September respectively.

(4) From and after the date of the first new valuation under the said Act of 1925 section 90 (Collection of local rates) of the Act of 1900 shall be repealed.

Recovery of
rates from
persons
removing.

102. If a justice is satisfied on application by any rate collector or constable that any person is quitting or about to quit any premises in the parish and has failed to pay on demand any general district rate or poor rate

or general rate which may be due from him and intends to evade payment of the same by departing from the parish the justice may by warrant under his hand without issuing any previous summons to the person so in default authorise the said rate collector or constable as the case may be to distrain forthwith the goods and chattels of such person and sell the same and the said rate collector or constable shall execute the warrant accordingly The proceeds resulting from the sale of the same shall be used to defray the amount of any general district or poor rate or general rate due from the person so in default and the reasonable expenses incurred in the execution of the warrant and any surplus remaining over therefrom shall be paid to him.

FINANCIAL PROVISIONS.

103.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and in order to secure the repayment of the said sums and the payment of interest thereon the Corporation may mortgage or charge the respective revenues funds and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied thereby shall respectively be “the prescribed period”) mentioned in the fourth column of the same table (namely):—

1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
(a) For the purchase of lands.	£ 5,984	The borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(b) For and in connection with the construction of the street works authorised by this Act.	143,429	The district fund and general district rate.	Fifty years from the date or dates of borrowing.

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1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
(c) For and in connection with the construction of sea walls and promenades authorised by this Act.	£ 114,626	The district fund and general district rate.	Fifty years from the date or dates of borrowing.
(d) For and in connection with the construction of the service reservoir authorised by this Act.	27,500	The district fund and general district rate.	Fifty years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act including the provision of working capital for the purposes of the borough fund and district fund.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister of Health.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Health.

(3) The provisions of this section prescribing the revenue funds or rates which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 92 (Power to use one form of mortgage for all purposes) of the Act of 1900.

Incorporation of

104. The following sections of the Act of 1900 are incorporated with this Act and shall extend and apply

thereto as if those sections with any necessary modifications were set out in this Act namely :—

A.D. 1926.

—
 provisions of
 Act of 1900.

THE ACT OF 1900 :

Section 75 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 76 (Mode of raising money);

Section 77 (Provisions of Public Health Act as to mortgages to apply);

Section 80 (Sinking fund) Provided that the said section shall be read and have effect as if the words “three
 “ pounds ten shillings per centum
 “ per annum or such other rate as
 “ the Minister of Health may from
 “ time to time approve ” were inserted in subsection (1) (b) of that section instead of the words “three per centum per annum”;

Section 81 (Protection of lender from inquiry);

Section 82 (Corporation not to regard trusts);

Section 83 (Appointment of receiver);

Section 87 (Application of money borrowed).

105. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made Provided that in respect of moneys borrowed for the purchase of the lands for and the construction of the sea walls and promenades authorised by this Act it shall not be obligatory upon the Corporation to pay such first instalment or make such first payment to the sinking fund until the completion of the work in respect of which the money is borrowed or until the expiration of three years from the passing of this Act (whichever shall be the earlier).

Mode of
 payment off
 of money
 borrowed.

A.D. 1926.

Repeal of section
118 of Act of
1900.

Power to
re-borrow.

106. Section 118 (Penalties to be paid over to the treasurer) of the Act of 1900 is hereby repealed.

107.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Article II. (Power to re-borrow) of the Margate Order 1912 and Article II. (Extension of power to re-borrow) of the Margate Order 1916 are hereby repealed.

108.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order as from the thirty-first day of March nineteen hundred and twenty-seven or as from any succeeding thirty-first day of March the Corporation may if they think fit establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

A.D. 1926.
—
Consoli-
dated loans
fund.

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys temporarily borrowed without security in connection with the exercise of duly authorised borrowing powers;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers :

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the exercise of any duly authorised borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; or
- (b) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation :

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in

A.D. 1926. — statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Investment
of and pay-
ments into
sinking
fund.

109. From and after the first new valuation under the Rating and Valuation Act 1925 when under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations (if any) thereof required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation (that is to say) :—

(1) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities :

(2) The accumulations of the said yearly sums shall be paid and provided out of the general rate fund and general rate and any interest dividends and the proceeds arising from the

investment of the said yearly sums and the accumulations thereof including any moneys standing to the credit of any sinking fund or loans fund as aforesaid at the passing of this Act shall be paid into and form part of the general rate fund.

A.D. 1926.

110. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Period for re-
payment of
loans under
Municipal
Corporations
Act 1882.

111. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Evidence
of transfer
or trans-
mission of
securities.

112. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Receipt in
case of
persons not
sui juris.

113. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Interest on
mortgages
held jointly.

114.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

A.D. 1926.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Apportion-
ment of
items.

115. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

116.—(1) Notwithstanding anything contained in any previous enactment all money received by the Corporation on account of the revenue of their water undertaking shall be carried to and shall form part of the district fund or (from and after the date of the first new valuation under the Rating and Valuation Act 1925) the general rate fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

A.D. 1926.

—
Application
of revenue
and pay-
ment of
expenses of
water under-
taking.

(2) Any moneys which the Corporation are required or authorised to pay or apply under section 86 of the Act of 1900 and subsection (3) of this section shall for the purposes of subsection (1) of this section be deemed to be payments and expenses made and incurred in respect of their water undertaking and any income arising from the investment of the reserve fund authorised under section 86 of the Act of 1900 shall be deemed to be money received on account of the revenue of the said undertaking.

(3) The Corporation may (if they think fit) apply money received by them on account of the revenue of their water undertaking in the provision of funds for working capital. Provided that money shall only be so applied after the working and establishment expenses of the undertaking and the interest and sinking fund payments in respect thereof have been provided for.

117.—(1) The Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep the accounts of their water undertaking so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say) :—

Separate
accounts
to be kept.

(a) The working and establishment expenses and cost of maintenance of the undertaking;

(b) The interest on moneys borrowed and applied by the Corporation for the purposes of or connected with the undertaking;

A.D. 1926.

(c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed and applied for the purposes of the undertaking;

(d) All other expenses (if any) of maintaining the undertaking;

(e) The amount (if any) paid to the reserve fund authorised under section 86 of the Act of 1900.

(2) The Corporation shall show in their accounts relating to their water undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

PART X.

MISCELLANEOUS.

Prevention
of nuisances
from smoke.

118.—(1) Section 98 (Penalty for contravention of order of court) of the Public Health Act 1875 shall in its application to the borough be read and have effect as if the sum of five pounds were referred to therein instead of each of the sums of ten shillings and twenty shillings.

(2) If any fireplace or furnace employed or to be employed within the borough after the passing of this Act (not being a fireplace or furnace in any steam road wagon or traction engine or other mechanically propelled road vehicle or an ordinary domestic fireplace)—

(a) in the working of engines by steam; or

(b) in any building used for the purposes of trade or manufacture; or

(c) in baths or washhouses (although a steam engine be not used or employed therein)

shall not be so constructed as to consume or burn the smoke arising from such fireplace or furnace the owner or occupier of the premises on which such fireplace or furnace shall be situated shall be liable to a penalty not exceeding five pounds.

(3) Every person being the owner or occupier of the premises who shall after the passing of this Act

use any such fireplace or furnace which shall not be so constructed as aforesaid and every such person or any foreman or other person employed by such owner or occupier who shall so negligently use any fireplace or furnace if it has been so constructed as aforesaid that the smoke arising therefrom shall not be effectually consumed or burnt shall be liable in the case of an owner or occupier to a penalty not exceeding ten pounds and to a further penalty of five pounds for every day after the date of the imposition of any such penalty as last aforesaid during any part of which such fireplace or furnace shall be so used and continued and in the case of a foreman or other person so employed a penalty not exceeding five pounds and a daily penalty not exceeding forty shillings Provided that in every case where one or more fireplaces or furnaces shall communicate with a single chimney the names of the several owners and occupiers of the premises on which such fireplaces or furnaces shall be situated and the several foremen or other persons having the control or management of such fireplaces or furnaces may be included in one summons and the justice may in his discretion apportion the penalty amongst such persons in such proportion as he may see fit or may impose the payment of such penalty on one or more of such persons in exclusion of the others.

A.D. 1926.

(4) This section shall not apply to any locomotive steam engine used on the railway of any railway company nor to ships or vessels.

119.—(1) The provisions of section 91 (Definition of nuisances) of the Public Health Act 1875 shall extend to and be applicable in respect of the emission from any chimney of any grit or gritty particles as if such grit or gritty particles were smoke arising from furnaces.

Preventing nuisance caused by emission of grit from chimneys.

(2) This section shall not apply to any locomotive steam engine used on the railway of any railway company or to any mechanically propelled road vehicle.

120.—(1) The provisions of the last two preceding sections of this Act shall not for a period of five years from the passing of this Act apply to any fireplace or furnace in any manufactory which is in use at the

Postponement of operation of certain provisions &c.

A.D. 1926. — passing of this Act and is used for manufacturing purposes or to the chimney of any such fireplace or furnace.

(2) Nothing in the provisions of the last two preceding sections of this Act shall prejudice or prevent the operation of any general Act which may be passed by Parliament in the present or any future session and which deals with matters referred to in those provisions or any of them and if and so soon as any such general Act is passed the provisions of the said last two preceding sections of this Act shall cease to have effect.

Power to
establish
information
bureau.

121. The Corporation may establish and maintain an information bureau for the purpose of supplying such information with regard to the borough as may be desired by visitors or intending visitors to the borough and others and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or for information supplied by means thereof.

Silencers for
internal
combustion
engines.

122.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times at his own expense keep such silencer in proper repair.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid :

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

123. The Corporation may employ and pay boatmen for the purpose of protecting persons while bathing and may provide any boats for that purpose.

A.D. 1926.

—
 For protec-
 tion of
 bathers.

124. For the protection of the Isle of Thanet Electric Supply Company Limited (in this section called "the company") the following provisions shall unless otherwise agreed in writing between the Corporation and the company have effect (that is to say):—

For protec-
 tion of Isle
 of Thanet
 Electric
 Supply
 Company
 Limited.

- (1) Nothing in this Act shall extend to or authorise any interference with any electric line or work belonging to the company as undertakers within the meaning of the Electric Lighting Act 1882 and to which the provisions of section 15 of that Act apply except in accordance with and subject to the provisions of that Act and of section 13 of the Margate Corporation Electric Lighting Order 1896 :
- (2) Not less than fourteen days before commencing to execute under the provisions of Part III. of this Act any works (including therein the demolition of or any interference with any building to which any bracket or wire of the company is attached) in under or over the surface of any part of or adjoining any street in which any light railway of the company or any apparatus provided in connection with or for the purpose of working any such light railway (in this section referred to as "light railway apparatus") is situate the Corporation shall submit to the company plans and particulars of the intended work and shall comply with all such requirements as the company may at any time within fourteen days after the receipt of any such plans and particulars reasonably make for the protection of their light railway and light railway apparatus and for preventing any interruption to the working thereof :
- (3) The Corporation shall not obstruct or interfere with the free uninterrupted and safe user of any of the light railways of the company or any traffic thereon :

A.D. 1926.

- (4) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or to any of their light railways or the traffic thereon or to any electric lines or works forming part of the electricity undertaking of the company by or by reason of the execution of any of the works authorised by Part III. of this Act or any act or default of the Corporation or their contractors or any person in the employ of either of them while engaged on work for the Corporation and shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or of any such act default or omission :
- (5) If any difference shall arise between the Corporation and the company under this section the difference shall be referred to and determined by an arbitrator to be agreed or failing agreement to be appointed on the application of either party after notice in writing to the other by the Minister of Transport and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

Service of
summons on
members of
council.

125. Notwithstanding anything contained in the second schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Expenses
may be
declared
private im-
provement
expenses.

126. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

As to breach
of conditions
of consent
of Corpora-
tion.

127. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject

to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. A.D. 1926.

128. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act. Provided that as respects byelaws made under the section of this Act of which the marginal note is "Byelaws as to promenades &c." the Secretary of State shall be substituted for the Minister of Health. General provisions as to bye-laws.

129. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation. Consent of Corporation to be in writing.

130. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

131. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be Damages and charges to be settled by justices.

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Act, 1926.

A.D. 1926. — settled or determined by the court of summary jurisdiction before whom any offender is convicted.

Apportionment of expenses in case of joint owners.

132. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall save as in this Act expressly provided be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Recovery of demands.

133. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Informations by whom to be laid.

134. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of the Margate Extension and Improvement Act 1877 the Act of 1900 the Margate Corporation (Water) Act 1902 the Act of 1908 or this Act or of any byelaw made under any of those Acts may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Recovery of penalties &c.

135.—(1) Save as otherwise by this Act expressly provided all offences against the Margate Extension and Improvement Act 1877 the Act of 1900 the Margate Corporation (Water) Act 1902 the Act of 1908 or this Act and all penalties forfeitures costs and expenses imposed or recoverable under any of those Acts or any byelaw made in pursuance of any of those Acts may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

(2) Section 76 (Recovery and application of penalties) of the said Act of 1877 section 116 (Recovery of penalties &c.) and section 117 (Informations by whom to be laid)

of the Act of 1900 and section 43 (Recovery of penalties) A.D. 1926.
of the Act of 1908 are hereby repealed. —

136. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Saving for
indictments
&c.
Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

137. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part V. (Streets buildings sewers and drains) Part VI. (Infectious disease and sanitary provisions) or Part VII, (Police and hackney carriages) of this Act or by any conviction or order made by a court of summary jurisdiction under the said provisions may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal. As to
appeal.

138. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application
of section 265
of Public
Health Act
1875.

139. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensa-
tion how to
be deter-
mined.

140. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such In executing
works for
owner Cor-
poration
liable for
negligence.
only.

[Ch. lxxxi.] *Margate Corporation* [16 & 17 GEO. 5.]
Act, 1926.

A.D. 1926. — work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Power to
enter
premises.

141. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part V. (Streets buildings sewers and drains) and Part VI. (Infectious disease and sanitary provisions) of this Act as if those purposes had been mentioned in the said section 102.

Penalty on
occupier
refusing
execution of
Act.

142. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part V. (Streets buildings sewers and drains) or Part VI (Infectious disease and sanitary provisions) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

Incorpora-
tion of
further

143. The following further sections of the Act of 1900 are incorporated with this Act and shall extend

and apply thereto as if those sections with any necessary modifications were set out in this Act namely :— A.D. 1926.

Section 112 (Inquiries by Local Government Board) Provided that for the purposes of this Act subsection (2) of the said section 112 shall be read and have effect as if the words “five guineas” were substituted for the words “three guineas” therein; sections of Act of 1900.

Section 113 (Authentication and service of notices);

Section 119 (Judges not disqualified).

144. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

145. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose. Crown rights.

146. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing Costs of Act.

[Ch. lxxxi.] *Margate Corporation* [16 & 17 GEO. 5.]
Act, 1926.

A.D. 1926. officer of the House of Lords or of the House of Commons
— shall be paid by the Corporation out of the borough fund
and borough rate or out of moneys to be borrowed under
this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Borough.	Numbers on Deposited Plans.
Margate	4 7 to 16 inclusive 18 to 23 inclusive 25 26 to 40 inclusive 42 to 45 inclusive.

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